

SENATE BILL 2392

By Akbari

AN ACT to amend Tennessee Code Annotated, Title 50,
relative to employer retaliation.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "Anti-Retaliation for Reporting Unsafe Work Act."

SECTION 2. Tennessee Code Annotated, Section 50-1-304, is amended by deleting subsections (b) and (c) and substituting:

(b)

(1) An employer shall not discharge or terminate an employee primarily because of refusing to participate in, or for refusing to remain silent about, illegal activities.

(2)

(A) An employer shall not discharge or terminate, demote, or, except as otherwise provided by law, report the immigration status of, or threaten to discharge, terminate, demote, or report the immigration status of, an employee primarily because of the employee reporting:

(i) Unsafe working conditions;

(ii) Wage theft; or

(iii) Other labor violations.

(B) Subdivision (b)(2)(A) does not:

(i) Prohibit an employer from discharging, terminating, or reporting the immigration status of an employee if otherwise required to do so by law; or

(ii) Apply to actions taken in good-faith to comply with federal immigration requirements.

(c)

(1) An employee aggrieved by a violation of subdivision (b)(1) or (b)(2), including through the employer's discharge, termination, or demotion of the employee, reporting of the employee's immigration status, or threatening to discharge, terminate, or demote the employee, or report the employee's immigration status, has a cause of action against the employer for retaliatory discharge or retaliatory conduct and may seek:

(A) Reinstatement to the employee's position prior to discharge, termination, or demotion;

(B) Back-pay for the time period for which the employee would have been working in the same position if the employer had not discharged, terminated, or demoted the employee; and

(C) Punitive damages; provided, that a court shall only award punitive damages upon a finding of willful, malicious, or reckless conduct.

(2) A court shall award to an employee who prevails in a cause of action brought pursuant to subdivision (c)(1) reasonable court costs and attorney fees.

SECTION 3. Tennessee Code Annotated, Section 50-1-304, is amended by deleting subsection (f) and substituting:

(f) In a civil cause of action for retaliatory discharge or conduct brought pursuant to this section, or in a civil cause of action alleging retaliation for refusing to participate in or remain silent about illegal activities, or reporting unsafe working conditions, wage theft, or another labor violation, the plaintiff has the burden of establishing a prima facie case of retaliatory discharge or conduct. If the plaintiff satisfies this burden, then the

defendant has the burden to produce evidence that one (1) or more legitimate, nondiscriminatory reasons existed for the plaintiff's discharge or demotion, or the reporting of the plaintiff's immigration status. The burden on the defendant is a burden of production and not persuasion. If the defendant produces such evidence, the presumption of discrimination raised by the plaintiff's prima facie case is rebutted, and the burden shifts to the plaintiff to demonstrate that the reason given by the defendant was not the true reason for the plaintiff's discharge or demotion, or the reporting of the plaintiff's immigration status, and that the stated reason was a pretext for unlawful retaliation. The foregoing allocations of burdens of proof apply at all stages of the proceedings, including motions for summary judgment. The plaintiff at all times retains the burden of persuading the trier of fact that the plaintiff has been the victim of unlawful retaliation.

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it, and applies to causes of action arising on or after that date.